HH 152-26
Case No HCHC 51-25
Ref Case No HCHC 829-24

BLUESTAR LOGISTICS [PVT] LTD
versus
HARARE MOTORWAYS [PVT] LTD
and
ITAYI MATAVATA
and
REGISTRAR OF DEEDS N.O.
and
SHERIFF FOR ZIMBABWE N.O.

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION

MAFUSIRE J
HARARE, 13 October 2025

Date of judgment: 20 February 2026

Opposed application and exception

Mr T. Zhuwarara, for the applicant / plaintiff
Mr T. Mpofu, for the respondent / defendant / excipient

MAFUSIRE J

a Introduction

[1] These are two matters in one. They were heard together and judgment was reserved. This now is the judgment on both.

[2] The one matter is HCHC51-25. It is an application for an interim interdict. For now, I deliberately skirt the classification whether it is an interlocutory interdict or a final one because even this aspect is in issue.

[3] The other matter, HCHC829-24, is an action for specific performance and other relief. The trial is yet to happen. In this matter, the first respondent, Harare Motorways [Private] Limited, has excepted to the declaration by the plaintiff, Bluestar Logistics [Pvt] Ltd. Shortly I shall explain who the rest of the parties are in this long-drawn-out dispute.

[4] In the action matter, HCHC829-24, the first respondent has not only excepted to the plaintiff's declaration but also it has filed some special pleas in bar. However, it has not yet pleaded to the merits. The matter was prosecuted to the pre-trial conference-cum-case management-cum-case mapping session in accordance with Rules 17 – 19 of the High Court [Commercial Division] Rules, 2020. The issues for trial were settled and the trial mapped as follows, quoting verbatim from the case management order:

> "1 Subject to this order, the proceedings under the case reference numbers HCHC829-24 and HCHC51-25 shall be heard together on a date and time to be fixed by the Registrar in consultation with the parties.
>
> 2 HCHC51-25 shall be heard first.
>
> 3 In HCHC829-24, the first defendant's exception shall be heard first.
>
> 4 In the event that the exception in HCHC829-24 does not succeed, the first defendant shall plead over to the merits forthwith.
>
> 5 In the event that the first defendant pleads over to the merits as aforesaid, and the pleadings are closed, the first defendant's special pleas shall be heard together at the same time as the trial on the merits, starting with the special pleas.
>
> 6 Within seventy-two hours of the date of this order, or any such longer period not exceeding seventy-two hours as the parties may agree upon in consultation with the Registrar, the parties shall reproduce streamlined versions of the records of proceedings in the matters aforesaid, among other things, excluding any such documents or pleadings as may have been duplicated.
>
> 7 Costs shall be in the cause."

[5] Paraphrased, the case management order aforesaid directed that the records for the two matters would immediately be cleaned out of any duplications; that the matters would be heard together; that the application would be heard ahead of the exception; that in the event that the exception did not succeed, the first respondent would have to plead over to the merits and that the first issue to be determined at the trial, would be the first respondent's special pleas. For now, this detail suffices.

[6] In the application matter, HCHC51-25, the applicant seeks an interdict the exact relief of which is couched in the draft order as follows:

> "1. The 1st Respondent be and is hereby interdicted from transferring to the second respondent a certain piece of land situate in the District of Salisbury called Stand 173 Willowvale Township measuring 7 438 square metres held under Deed of Transfer number 6366/88 pending the determination of the action proceedings under HCHC 829/24.
>
> 2. The 3rd respondent is hereby ordered and directed not to register any transfer of or any security over the property … … pending the determination of the action proceedings under HCHC 829/24.
>
> 3. The 1st and 2nd Respondents shall pay the Applicant's costs on an attorney and client scale."

[7] Paraphrased, the applicant seeks an interdict to restrain the first respondent from transferring its title in the immovable property to the second respondent, Itayi Matavata. The interdict will equally restrain the third respondent, the Registrar of Deeds, from registering in the Deeds Office, any such transfer or any kind of security over the property, most likely a mortgage bond. Itayi Matavata is the other person to whom the first respondent alleges it sold the property, allegedly after the sale agreement with the applicant had fallen through. More about this later.

b Background

[8] The dispute between the parties is a saga. It is as chequered as they come. Litigation over the property in question started way back in 2016. At the last count, there have been over seven sets of proceedings in respect of this property, excluding some Supreme Court proceedings. It is now a bog, a quagmire.

[9] Presently, the main protagonists are the applicant and the first respondent. Ironically, at one time these two joined forces together and fought from the same corner against some common enemies then. After wreaking success, they subsequently turned on each other. That is the synopsis. Now the further particulars.

[10] The whole dispute centers on the Willowvale property the full description of which is in the applicant's draft order reproduced above. It is an industrial property over which stands some workshop bays, office and ablution blocs, and a work shed. At all material times, it was registered in the name of the first respondent. It still is.

[11] In 2016 the property was attached and sold in execution at the instance of a financial institution, African Banking Corporation ["***BancABC"***], which the first respondent owed money. A company called Doves Funeral Assurance Company Limited ["***Doves***"] was the highest bidder at the auction sale conducted by the Sheriff, the fourth respondent herein.

[12] There were problems with the Sheriff's sale to Doves. I shall not go into the details. Suffice it to say that transfer to Doves did not happen. In HC 4348-19 the first respondent and BancABC joined forces as first and second applicants respectively. They successfully parried off the interest of Doves and the Sherriff in the property. Although cited as one of the respondents in the matter, the present applicant, Bluestar Logistics, supported the applicants. Not only that, but it actually financed the cost of that litigation. The parties had all agreed that after getting rid of the Sheriff's sale to Doves, the property would be sold by private treaty to the applicant, among other things, to settle BancABC's mortgage bond over the property.

[13] The sale of the property by private treaty from the first respondent to the applicant was done in writing on 1 February 2019. The purchase price was US$2 million. More about the terms and conditions of the sale later. But for the moment, suffice it to say that from the purchase price, the mortgage bond registered over the property by BancABC was paid off. The initial payment by the applicant, made in the local currency, was an equivalent of US$679 000. BancABC gave the green light for transfer to the applicant. The applicant further paid off the statutory taxes due to the Zimbabwe Revenue Authority ["***ZimRA***"].

[14] Transfer of the property from the first respondent to the applicant hit a snag. HCHC 4348-19 jointly by the first respondent and BancABC against the Sheriff and Doves for, *inter alia*, the removal of the caveat over the property took, in my own estimation, approximately four years. At one time Doves appealed to the Supreme Court but was unsuccessful.

[15] With the advent of statutory instrument 33 of 2019[1] which, among other things, introduced the local currency back into the economy in the form of Real Time Gross Settlement dollars [RTGS] on a ratio of one to one with the United States dollar [USD], the applicant considered that the balance of the purchase price due by it to the first respondent had automatically converted to RTGS. In June 2023 it tendered an amount in the sum of RTGS $1 320 741-98 and demanded transfer.

[16] By letter dated 16 June 2023 from its legal practitioners, the first respondent not only rejected the tender of payment and demand for transfer, but also alleged several breaches of the agreement of sale by the applicant, chief of which was the applicant's alleged failure to provide a written guarantee of the purchase price from a financial institution called TEFCO Finance ["***TEFCO***"] within fourteen days of the date of the agreement, or the applicant's alleged failure to secure an extension of time for the provision of that guarantee within the same time frame. The first respondent effectively declared the agreement cancelled.

[17] The development above sparked an immediate and somewhat, frenzied reaction by the applicant. Among other things, it instituted multiple court proceedings. In all these, the applicant has sought to register its own caveat on the property or to prevent the first and third respondents from transferring the property to Itayi Matavata.

[1] Presidential Powers (Temporary Measures) (Amendment of Reserve Bank of Zimbabwe Act and Issue of Real Time Gross Settlement Electronic Dollars (RTGS Dollars) Regulations, 2019, SI 33 of 2019.

[18] So, apart from HC 4137-16 which was BancABC's judgment leading to the attachment of the property, HC4348-19, the joint fight by the first respondent and BancABC against the Sheriff and Doves, and some Supreme Court proceedings, in tabular form, the applicant's own cases were these:

Case No	**Main Parties**	**Cause Of Action**	**Outcome**
HCH8108-23	applicant & first resp	specific performance	withdrawn
HCH1343-24	applicant & first resp	caveat placement / interdict	struck off / withdrawn
HCHC829-24	applicant & first resp	specific performance	current
HCHC8-25	applicant & first resp	urgent application for caveat	struck off / withdrawn
HCHC51-25	applicant & first resp	interdict	current

[19] HCHC8-25 was an urgent chamber application by the applicant for essentially the same relief as in HCH1343-24, namely the registration of a caveat over the property to restrain transfer to any third party. The matter was set down before me. I struck it off the roll for lack of urgency. Eventually the applicant withdrew it after instituting HCHC51-25.

[20] HCH1343-24 had actually been heard by TAKUVA J who had reserved judgment. Eventually, the honourable judge struck it off the roll on the basis that the action matter under HCHC8108-23 upon which that application was hinged had since been withdrawn. So HCH1343-24 was not determined on the merits.

c The cases of the parties in both HCHC829-24 and HCHC51-25

[21] To recap: in HCHC829-24 the applicant seeks certain declaratory orders to the effect that the 1 February 2019 agreement of sale between itself and the first respondent is still valid and binding. It also seeks transfer of the property. In HCHC51-25, the applicant has applied for an interdict to restrain the first respondent and the Registrar of Deeds, the third respondent herein, from transferring the property to the second respondent or to encumber it in any way.

[22] Distilled, the applicant's case is this. Despite making the payment in the sum of US$679 000 aforesaid; despite the first respondent having actually obtained the ZimRA tax

clearance certificate to allow the transfer to go through following, among other things, the mandatory seller-purchaser interview before ZimRA; despite the applicant financing the first respondent in its case against the Sheriff and Doves by paying its own attorneys and advocates; and given that in the advent of SI 33/99 the balance due by it to the first respondent had automatically converted to RTGS on a one to one ratio, which amount it has since tendered, the first respondent had no right to purport to repudiate the agreement of sale as it did. Having had no such right, the first respondent must be ordered to transfer the property and accept the balance of the purchase price in RTGS which had been subsequently revalued by SI 60/2024[2].

[23] Just before the hearing of HCH8108-23, the applicant's original claim for declaratory orders and transfer, before MUNANGATI-MANONGWA J on 19 September 2024, the matter was removed from the roll by consent following some discussions between the parties' attorneys and advocates. The applicant eventually withdrew the case altogether.

[24] The first respondent vigorously contests the application on a number of grounds. *In limine* it argues that HCHC51-25 is *lis pendens*. It has been *lis pendens* on two occasions: firstly, on the basis that although HCHC8-25 which sought the same remedy, was struck off the roll for lack of urgency, it was still live in the legal system because it could still be set down on the ordinary opposed motion roll. Secondly, HCH1343/24 was also still live at the time of filing HCHC51-25.

[25] Substantively, the first respondent alleges that the applicant caused the removal of HCHC8108-23 from the roll and subsequently withdrew it altogether because a compromise had been reached by the parties through their respective legal practitioners. The first respondent alleges that the applicant informed that it no longer wished to pursue transfer as its requirements had since outgrown the size of the property and that it now merely wished to be refunded the purchase price that it had paid. The first respondent

[2] Presidential Powers (Temporary Measures) Zimbabwe Gold Notes and Coins) Regulations, 2024, SI 60/24.

further alleges that following that change of position by the applicant, it had proceeded to re-sell the property to Itayi Matavata in November 2024 as nothing no longer stood in the way.

[26] The first respondent condemns the applicant's conduct as an abuse of the court process. It also accuses it of *mala fides*. It says the balance of the purchase is well in excess of a million United States dollars yet the applicant has purported to tender a meaningless RTGS amount that converts to a trifle US$16 (sixteen dollars) and from which all the remaining statutory obligations of the sale should be disbursed.

[27] It is on the basis of the alleged compromise above that the first respondent has pleaded specially in HCHC829-24 arguing that the applicant is barred from going back to its original position.

[28] The applicant vehemently denies any such agreement between the parties' legal practitioners. It denies that its legal practitioners had any mandate from it to compromise its case as aforesaid, or at all. It alleges that the reason why HCHC8108-23 was withdrawn from the roll on the day it was poised to be heard by MUNANGATI-MANONGWA J, was simply because its legal practitioners required time to obtain further instructions from it, having been confronted, just before the hearing, with a complete copy of the written agreement which seemed to have a bearing on the merits. The applicant further alleges that it subsequently withdrew HCHC8108-23 because it had instituted HCHC829-24 which in effect claims the same relief.

[29] It will be recalled that the first respondent's special pleas in bar will be the first issue for trial should its exception herein fail.

[30] In its exception in HCHC829-24, the first respondent attacks the applicant's declaration on the basis that, as I have understood it, and in my own summation, the applicant's cause of action is incomplete or is contradictory in that by its own agreement that it has tendered before the court, it was obliged to submit a guarantee of the purchase price from

TEFCO within fourteen days of the signing of the agreement, or to secure an extension of the time within which to do so but within the same time frame. Not having pleaded its own compliance with this special condition of sale which, in effect, was a condition precedent, not only had that sale automatically become invalid by operation of the law because the applicant, in fact, failed to comply with it, but also the applicant's declaration is excipiable for lacking these essential averments.

[31] The first respondent further alleges that the agreement of sale had a non-variation clause and that therefore, the applicant cannot purport to have acted in terms of another agreement if it was not reduced to writing and signed by the parties.

[32] *Per contra*, the applicant's position to the exception is that it complied with all the terms of the agreement strictly, more particularly in that by agreement, the TEFCO guarantee was substituted with a guarantee from another financial institution, ZB Bank, following which, among other things, the first respondent was paid the first amount of $679 000 aforesaid and the subsequent amounts, all of which the first respondent and its legal practitioners duly received and duly accepted.

[33] The applicant argues further that, again in my own summation, the first respondent's argument on the non-variation clause is not a bar to its ability to put forward its position that the parties agreed that a substitute guarantee had been timeously obtained, timeously tendered and timeously accepted.

[34] With regards to what class of an interdict it is that the applicant seeks in HCHC51-25, the applicant alleges that it is clearly an interlocutory one as it is one sought to prevent the transfer of the property pending the determination of the action matter in HCHC829-24 in which it is seeking transfer of the property. As such, all that the applicant needs to show with regards to the type of right which it is seeking to protect, is merely a *prima facie* one, even if it be open to some doubt.

[35] *Per contra*, the first respondent argues that the interdict being sought by the applicant is one in perpetuity. It is not interlocutory but final. As such, the applicant is obliged to show the existence of some real right due to it as is threatened by the first respondent's actions. By reason of its breach, the applicant has neither a real right nor a *prima facie* one that it may seek to protect. On its papers, the applicant cannot possibly show any right because, among other things, its right to the property was predicated on a condition precedent which it failed to comply with, resulting in the agreement of sale automatically falling away by operation of the law.

[36] The applicant alleges that upon getting knowledge of the alleged second sale of the property by the first respondent to Itayi Matavata, it immediately wrote to him, among other things, informing him of the 1 February 2019 agreement and warning him to stay clear of the property, specifically not to take steps towards getting transfer. Itayi Matavata allegedly did not respond. Incidentally, he has filed no papers in these proceedings.

[37] Finally, the applicant argues that it will suffer an irreparable harm if the first respondent is not stopped. It is unaware of any other property the first respondent owns which can be attached to satisfy any judgment that it might obtain against the first respondent, especially considering that the first respondent has been wanting to sell this property to offset its numerous debts. Any award of damages, in the circumstances of this case, would not be an adequate alternative remedy.

d Issues for determination

[38] The first respondent's objection that HCHC51-25 was *lis pendens* had fallen away by the time of the hearing in October 2025. The applicant had simply withdrawn HCHC1343-24 [originally struck off the roll by TAKUVA J, and HC8-25 [originally struck off the roll by myself for lack of urgency]. Therefore, I need not be detained by this point *in limine*. The first respondent's concern whittles down to its right to costs.

[39] For HCHC51-25, the application for an interdict, the issues are:

i/ what type of an interdict is the applicant seeking, between an interlocutory one and a final interdict?

ii/ is the applicant entitled to an interdict?

[40] For HCHC829-24, the action for declaratory orders and specific performance, the issue is whether or not the applicant's declaration is excipiable.

e Determination of HCHC51-25

[41] The interdict that the applicant seeks is plainly and manifestly an interlocutory one. It is not sought in perpetuity. It is one sought to bar transfer of the property to Itayi Matavata until HCHC829-24 is determined. It is also to prevent the Registrar of Deeds from placing any encumbrance on the property as security for a debt. The purpose of this interdict is to preserve the status *quo ante* until the rights of the parties over the property are determined to finality in HCHC829-24.

[42] In *Cawood v Madzingira & Anor* HMA12-17, at p 5 – 6 of the cyclostyled judgment, I tried to illustrate in graphic terms the difference between an interlocutory order and a final one as follows:

> "Justice delivery requires that in every case the real or main dispute between the parties be determined finally. It is like surgery. The main dispute is the cyst or boil or ulcer that is threatening the social harmony that must exist between people. That ulcer must be opened up and treated. The patient has to be booked for surgery. It may take time. The patient has to wait in the queue, just like in ordinary application or action proceedings. Until the ulcer is removed, the pain may remain. The ulcer may actually lead to other complications.
>
> It often happens that pending the determination of the main dispute, i.e. the treatment of the ulcer by surgery, other side issues or disputes may develop. But these are mere symptoms of the main problem. They may not require elaborate surgery. A simple prescription may be all that is necessary to provide interim relief. That simple pain killer is the provisional order that may be granted in an urgent chamber application. But it is granted on the understanding that the main surgery to deal with the real problem is awaiting determination."

[43] In the present case, it matters little that the applicant is not seeking a provisional order on an urgent basis. The order it seeks is nonetheless provisional. It is sought *pendent lite*. Its life span ends on the determination of HCHC829-24. Until then, the rights of the parties as existing at the moment remain unaltered. Therefore, the interdict sought by the applicant is interlocutory or provisional.

[44] To succeed, the applicant merely shows the existence of some *prima facie* right owned by it the continued existence of which is being threatened by the respondent's conduct. The right may well be open to some doubt. That does not matter. The applicant needs not show a clear right. That will be the business of HCHC829-24.

[45] The first respondent argues that the applicant has no colour of right over the property, among other things, having failed even to plead compliance with the special terms of the agreement which were, in effect, conditions precedent. That is where the first respondent is getting it wrong.

[46] The applicant alleges that if transfer is not interdicted, and if before HCHC829-24 is determined, the first and third respondents go ahead and transfer the property to Itayi Matavata to whom the first respondent alleges it has already sold the property, it will suffer great prejudice, an irreparable harm. The court will listen to such a petition if certain requirements are met. These are:

i/ a right which is established merely on a *prima facie* basis, even if it be open to some doubt;

ii/ a well-grounded apprehension of an irreparable harm;

iii/ the absence of an effective or satisfactory alternative remedy,

see *Setlogelo v Setlogelo* 1914 AD 221, 227; *Cape Town Municipality v L.F. Boshoff Investments (Pty) Ltd* 1969 (2) SA 256 (C), 267B – E; *Eriksen Motors (Welkom) Ltd v Protea Motors, Warrenton & Anor* 1973 (3) SA 685 (A), 691; *PTC Pension Fund v Standard Chartered Merchant Bank, Zimbabwe Ltd & Anor* 1993 (1) ZLR 55 (H), 63A – C and *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (2) ZLR 52 (SC)

[47] In this case, there is an agreement between the parties. It gives the applicant very clear and definite rights over the property. The first respondent says the applicant can no longer realize such rights because not only has that agreement fallen away by operation of the law, but also that the applicant has no capacity or platform any more to claim any such rights because in its declaration, it has already failed to lay the necessary foundation for such claim.

[48] With respect, the court needs not go that far at this stage. Whether or not the agreement is now dead in the water is for determination in HCHC829-24. At this stage, I see an agreement. I see extensive rights reposed in the applicant. I have been told the applicant has performed extensively its side of the bargain, and would have finished but for the respondent's about turn. The respondent argues that the alleged performance by the applicant was not in accordance with the agreement. The applicant argues that the agreement was compromised and that both parties performed in terms of that compromise. For the court, that is sufficient proof of the existence of a *prima facie* right. The rest is for trial.

[49] Said this court in *Mann v Republic of Equatorial Guinea (1)* 2008 (1) ZLR 49 (H) at p 58B – E, *per* MAKARAU JP, as she then was:

> "… … a *prima facie* case is established once a cause of action is established, even where the chances of the applicant to succeed in sustaining the cause of action are open to doubt. … … …
>
> That a *prima facie* case in civil suits for the obtaining of interim protection is simply the setting out of facts establishing a possible and plausible claim against the respondent, without the evidence necessary to prove such a claim, appears to me clearly from the following remarks by CHATIKOBO J in *Sultan v Fryfern Enterprises (Pvt) Ltd & Anor* 2000 (1) ZLR 188 (H):
>
> > 'I have deliberately refrained from making definitive findings of fact because it may well be that further affidavits (if any are filed for the return date) or oral evidence may justify a different conclusion. At this stage I am concerned only with the question whether a *prima facie* case has been shown. I am satisfied it has.'"

[50] I am satisfied that the applicant has established a *prima facie* right warranting interim protection. The rest of the requirements for an interdict really need not detain me. They are self-evident, even from those facts that are common cause. Nonetheless, I proceed to deal with all of them at one go.

[51] *Prima facie*, the applicant will suffer irreparable harm if transfer is not interdicted in the interim. Not only has the first respondent not made any undertaking to wait until HCHC829-24 is determined, but also it actually wants to consummate its alleged sale to Itayi Matavata. It will go ahead if it is not stopped. The applicant has alleged that the first respondent is under pressure to pay pressing debts. The applicant has backed this up with certain correspondence confirming this assertion. The applicant fears that if Itayi Matavata gets transfer, there will be nothing stopping him from vindicating the property from it.

[52] Plainly, it is more convenient for all parties, including the court, to freeze everything for the moment until HCHC829-24 is determined. It will be difficult to unwind things should the alleged agreement between the first respondent and Itayi Matavata be consummated, and in the end the applicant is successful in the main matter. Itayi Matavata has been cited as a party in these proceedings. He has not filed any papers. It is prudent for everyone to wait.

[53] The first respondent argues that the applicant does not understand what an irreparable harm is in the context of an interdict. In my paraphrase, an irreparable harm is hardship that cannot be corrected, remedied or fixed later on. Notionally, the applicant cannot really say it will definitely suffer an irreplaceable loss should the interdict not be granted. At the various stages, including the current proceedings, the first respondent has tendered a refund of the applicant's payments towards the purchase price. That is a remedy.

[54] Furthermore, in the event that the applicant ultimately succeeds in the main action, it may be compensated in damages. The award of damages is a remedy for the hardship or loss it will have incurred.

[55] However, the applicant argues that the first respondent sold the property to liquidate the various debts due by it and that, other than the property itself, the first respondent is not known to have any other assets of value.

[56] The possibility of an award of damages to a party that eventually succeeds in a contest, whilst it may be an alternative remedy in the context of an interdict, is not always a satisfactory or adequate one. A court will not, whilst the chance is there to stop it, allow harm to ensue just because there is a possibility that the complaining party will be compensated in damages later on: see *Candid Electronics (Pty) Ltd v Merchandise Buying Syndicate (Pty) Ltd* 1992 (2) SA 459 (C).

[57] The principles on the award of damages not being necessarily a satisfactory or adequate alternative remedy are these:

i/ damages must grant similar protection: *Minister of Law and Order, Bophuthatswana, & Anor v Committee of the Church Summit of Bophuthatswana & Ors* 1994 (3) SA 89 (B), 99H and *Chapman's Peak Hotel v O'Hagans* [2001] 4 All SA 415(C), 420;

ii/ an interdict will not be granted if the applicant is otherwise compelled to part with its rights: *Fourie v Uys* 1957 (2) SA 125 (C), 129A;

iii/ damages will not be considered as an adequate remedy when the likelihood of an applicant's recovery is nil or minimal because the respondent is indigent or "a man of straw": *Fourie v Uys, supra,* at 129A;

iv/ damages will not be considered an adequate alternative remedy where the value of such damages in several years' time would be of questionable adequacy because of high inflation, coupled with the inability of the successful applicant obtaining pre-judgment interest on the damages: *Boiler Efficiency Services CC v Coalcor (Cape) (Pty) Ltd & Ors* 1989 (3) SA 460 (C), 475G.

v/ the rule that a decree of specific performance would not be granted where the applicant would be compensated adequately by an award of damages is an impermissible curtailment of the court's discretion: *Candid Electronics (Pty) Ltd v Merchandise Buying Syndicate (Pty) Ltd, supra,* at p 464G – H.

[58] The applicant has drawn attention to a passage in NATHAN on *Interdicts*, at p 32:

> "It is clear that if the applicant will have adequate compensation by the award of damages, he will have another ordinary remedy. There are, however, two limitations upon this: (1) The respondent is not entitled to say, 'I am going to keep the thing or the shares you are trying to vindicate, and you should be satisfied with damages, which I am well able to pay' - this the Court will not allow; (2) nor will the Court, where property has been taken or detained by the respondent, regard damages as a sufficient remedy where the respondent is clearly in bad financial circumstances, 'a man of straw'".

[59] The possibility of an award of damages is just but one of the several factors the court considers in the exercise of its discretion whether or not to grant an interim interdict: see *Candid Electronics (Pty) Ltd v Merchandise Buying Syndicate (Pty) Ltd, supra*, at p 465B.

[60] Taking all the above factors into account, all of which apply to the applicant's situation herein, I am satisfied that the interdict sought is eminently deserved.

f Determination of the exception in HCHC829-24

[61] To recap: the first respondent attacks the applicant's declaration on the basis that it lacks the averments necessary to sustain a cause of action. It argues that the declaration does not plead the fulfilment of a condition precedent to the contract, namely one relating to the TEFCO guarantee. The non-fulfillment of that clause resulted in the contract falling away. Furthermore, if it is the applicant's case that it became necessary for the original contract to be departed from, then it was incumbent upon the applicant to plead a written variation in view of the 'whole contract' clause.

[62] In contrast, the applicant draws attention to para 8 of its declaration and argues that it adequately pleaded the fulfillment of the contract's special condition. The applicant further argues that the existence of a 'non-variation' or 'whole contract' clause in a contract does not preclude one from relying on a waiver where it has occurred. According to the applicant, the first respondent waived the requirement for a TEFCO guarantee in favour of one from ZB Bank and that it actually prompted payment in terms of it.

[63] My decision is that the first respondent's exception is tenuous and unnecessarily argumentative. Among other things, it runs counter to the weight of legal authority. One general principle on exceptions is that if evidence can be led which can disclose a cause of action that is alleged in a pleading, then that pleading is ***not*** excipiable. A pleading is only excipiable if no possible evidence led on it can disclose a close of action: see *McKelvey v Cowan NO* 1980 ZLR 235 (G) at 236B and *Local Authorities Pension Fund v Nyakwawa & Ors* 2015 (1) ZLR 103 (H).

[64] At exception level, the excipient is confined to the four corners of the pleading impugned. He or she takes the pleading as is. The defect complained of must appear *ex facie* that pleading: see *Vermeulen v Goose Valley Investments (Pty) Ltd* 2001 (3) SA 986 (SCA), 997.

[65] Clause 8 of the applicant's declaration expressly pleads that the requirement for a TEFCO guarantee was varied by the parties and replaced with one from ZB Bank. The declaration further avers that performance of the contract was in terms of this substitute guarantee.

[66] By its synopsis of evidence, at trial the applicant intends to show that the first respondent, formally and in writing, did communicate its acceptance of the ZB Bank guarantee, among other things, directing how much the applicant had to pay, when and where to pay it.

[67] The applicant also intends to show that in pursuance of the parties' agreement for the applicant to finance the first respondent's litigation costs in the fight against Doves and the Sheriff, it did pay considerable sums of money directly to the first respondent's own lawyers, including its present counsel herein.

[68] In the Commercial Division, among other things, a party is required to attach to its pleadings all such documents as it may wish to rely on at trial. They are part of the synopsis of the evidence. In the present case, I glimpse a chain of correspondence that the

applicant intends to rely on to prove its case at trial. In my view, the exception is inviting the court to assess the evidence at this stage. For example, how else can the court consider the alleged breach of the special condition of the agreement without assessing the evidence? This will be an intolerable foray into the province of the trial that is yet to come.

[69] An exception is a legal objection to a pleading because of a patent defect in it. The main purpose of an exception is to obtain a speedy decision upon a point of law so as to settle the dispute in the most economical manner: see *Nyakwawa's* case above. Given the averments in the applicant's declaration and the weight of the evidence it has marshalled for the trial, the first respondent's exception is manifestly ill-conceived.

[70] Incidentally, the Commercial Court is a completely different dispensation altogether from the rest of the other divisions of the High Court. By its set of values, its co-principles and its ethos as spelt out in the Schedule, it is inevitable that the development of its procedural jurisprudence will take a different trajectory altogether. Among other things, driven by the requirement to resolve commercial disputes expeditiously, the principle, the ethos and the spirit of the rules of this court are such that very little room is left for litigants to dabble in legal niceties and other archaic practices. For example, the practice of requesting further particulars has been abolished. Timelines for the filing of pleadings are severely truncated. Predominantly, disputes get resolved amicably out of court or at the pre-trial conference-cum-case management stage. Stubborn ones that escape to trial have twelve months within which to be settled. The point about all this is that sterner calipers are employed to measure practices and procedures that may seem incompatible with the dominant purpose of the Commercial Division.

[71] Regarding the 'whole agreement clause', if the applicant will be able to show that the first respondent, through its legal practitioners, did in writing waive the TEFCO guarantee in favour of a ZB Bank one, no exception can be founded on the pleadings as they stand. A non-variation clause in a contract does not preclude reliance on a waiver. In

McAninch v Maisiri & Anor 2002 (2) ZLR 54 (S), the Supreme Court remarked as follows, *per* MALABA JA, as he then was, at p 61C – F:

> "Ackerman J held that the 'no variation except in writing' clause did not preclude the respondent from basing his case on the waiver by the appellant of her *accrued right to cancel the agreement* on 10 August 1980. Upholding the order by the court *a quo* directing the appellant to transfer the property to the respondent after the latter provided the necessary guarantee, his Lordship, with the concurrence of Theron J and Moll J, said at pp 17H – 18B:
>
> > 'In the instant case the reliance on waiver does not effect any variation of any term of the agreement. The respondent was still obliged to furnish the necessary guarantee. The right to cancel arising from the respondent's failure to furnish the guarantee by 10 August 1980 was solely for the appellant's benefit and it was merely this right, and nothing else, that she is alleged to have waived. Such waiver had no effect on the parties' rights or obligations, *in future*, in terms of the agreement. In my view, the respondent's contention, that the waiver relied upon by him involves no variation of the agreement and is therefore not subject to the non-variation clause, is squarely supported by the decision in *Impala Distributors v Traunus Chemical Manufacturing Co (Pty) Ltd* 1975 (3) SA 273 (T).'"

[72] Thus, the fact that a particular guarantee from a particular institution may not have been obtained or supplied within a particular time frame is not by itself decisive on the issue whether or not the contract behind it became voidable or void *ab initio* if an alternative guarantee was obtained.

[73] One of the complaints by the first respondent is that the applicant is being abusive and *mala fide* to tender a trifle US$16 for a property the balance of the purchase price for which exceeds US$1.3 million. But this is a matter for evidence and argument at trial. It is not a ground for an exception. At any rate, the applicant is confident that it shall be able to show that by reason of the changes in the monetary regime of this country from 2019, principally in terms of SI 33/2019 on 22 February 2019, which converted USD values and obligations to RTGS on a one to one basis, and SI 60/2024 on 5 April 2024 which revalued the RTGS currency and introduced the ZiG currency, it may well be excused from paying US$1.3 million aforesaid. It argues that this is by operation of the law. All these are matters for trial.

[74] The first respondent's exception lacks merit. It has to be dismissed.

g Disposition

[75] The applicant has made out a proper case for an interdict *pendente lite*. It must succeed. The first respondent's grounds of exception have no merit. They must be dismissed. Costs shall follow the result. There is no justification for any special order of costs. There is also no justification for saddling the second respondent with any order of costs when he has not in any way resisted the application. Therefore, the following orders are hereby made.

A HCHC51-25

i/ Pending the determination of the action proceedings under the case reference number HCHC829-24, the first respondent is hereby barred and interdicted from transferring to the second respondent, a certain piece of land situate in the District of Salisbury called Stand 173 Willowvale Township, measuring 7 438 square metres and held under Deed of Transfer number 6366/88.

ii/ The third respondent shall not register any transfer of the property aforesaid or any security over it until the determination of the action proceedings aforesaid.

iii/ The first respondent shall bear the applicant's costs.

B HCHC829-24

iv/ The first defendant's exception is hereby dismissed with costs.

20 February 2026



Wintertons, legal practitioners for the applicants / excipients
Gill, Godlonton & Gerrans, legal practitioners for the respondent